

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: July 14, 2026

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Official Pro Tempore Reporters | Superior Court of California | County of Orange \(occourts.org\)](#). For additional information regarding court reporter availability, please visit the court's website at [Language Access Interpreter Request | Superior Court of California | County of Orange \(occourts.org\)](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 04:30 PM the day prior to the hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing, or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5618. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department N18 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department N18 at the North Justice Center, located at 1275 N. Berkeley Ave., Fullerton, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange). The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange). Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

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#	Case Name	Tentative
	2023-1311590 CEP America-California vs. Citrus Valley Physicians Group, A Medical Corporation	Plaintiff's Motion in Limine No. 14 is GRANTED IN PART and DENIED IN PART. The Court treats Plaintiff's Motion in Limine No. 14 according to its substance as a motion to strike, or to limit the Court's consideration of, portions of defense expert Paul Adams's May 16, 2026, supplemental surrebuttal report (Exhibit 352) and the corresponding May 20, 2026, testimony. The motion is granted only as to the non-PASC-SEIU commercial-rate analysis described below. It is otherwise denied. <u>Procedural posture</u> The Court rejects Defendant's contention that the request is untimely or waived. When Defendant offered Exhibit 352 on May 20, 2026, Plaintiff objected that the report exceeded the limited surrebuttal authorized by the Court's May 7, 2026, order. The Court had not yet reviewed the report in full and expressly deferred a definitive substantive ruling. The Court received the exhibit subject to later review, stated that a later motion to strike could be made, and indicated that it might disregard portions found inconsistent

with the May 7 order. Plaintiff's present request therefore addresses an evidentiary objection preserved when the exhibit was offered; it is not an effort to reopen a closed evidentiary record. The evidence has not been finally closed or the matter submitted for decision.

The caption "motion in limine" is inapt because the challenged evidence has already been offered and conditionally received, but the label does not control. The Court considers the requested relief as a motion to strike or limit evidence. Defendant has had a full opportunity to oppose (two, actually), and no prejudice results from deciding the preserved issue on its merits.

Scope of the permitted surrebuttal

The May 7, 2026, order permitted a limited supplemental surrebuttal opinion confined to: (1) the newly produced Vituity LA Care/PASC-SEIU dataset; (2) material differences between that dataset and the LA Care data previously available to the defense; and (3) the effect, if any, of the new data on opinions expressed by either expert concerning the reasonable-value analysis. The order expressly prohibited new expert theories unrelated to that dataset and did not reopen expert discovery or matters previously addressed at trial.

That order permitted Adams to analyze the newly produced PASC-SEIU payment information and to revise his opinion concerning the reasonable value of the PASC-SEIU claims if the new data materially affected that opinion. It also permitted him to quantify the asserted effect of the new data—for example, his opinion that CVPG's prior \$147-per-claim treatment understated the payments reflected in Vituity's dataset and his calculation of an additional PASC-SEIU amount. Such opinions are a direct response to the late-produced data and remain within the authorized surrebuttal.

The order did not permit Adams to revive the separate non-PASC-SEIU commercial-rate methodology contained in his untimely rebuttal analysis. Applying a \$325 IPA contract rate to the non-PASC-SEIU commercial claims does not depend upon, and was not generated by, the newly produced PASC-SEIU dataset. Combining that preexisting commercial-rate methodology with a newly permissible PASC-SEIU calculation does not bring the former within the May 7 order. The combined aggregate figures are outside the permitted scope to the extent they incorporate the \$325 non-PASC-SEIU component.

Disposition

Accordingly, the Court rules as follows:

1. The motion is DENIED insofar as Exhibit 352 and Adams's testimony analyze Vituity's newly produced LA Care/PASC-

SEIU paid-claims data, identify differences or additional information in that dataset, address the effect of that data on the reasonable value of the PASC-SEIU claims, or calculate the asserted PASC-SEIU underpayment attributable to the new data.

2. The motion is GRANTED insofar as Exhibit 352 and Adams's testimony apply the \$325 IPA contract rate to the non-PASC-SEIU commercial claims, use that commercial-rate analysis to revise the value of those claims, or state aggregate damages figures that combine the excluded commercial component with the permitted PASC-SEIU component.
3. More specifically, on page 352-6 the Court will not consider subpart (b), which applies the \$325 contract case rate to non-PASC-SEIU claims, or the resulting aggregate opinions of \$395,864.63 and \$305,826.62. The Court may consider subpart (a) and any calculation limited to the newly produced PASC-SEIU data.
4. The Court will not consider pages 352-14 through 352-18 to the extent they reproduce or support the IPA contract and non-PASC-SEIU \$325 methodology. As to pages 352-27 through 352-37 (Exhibits D and E), the Court will consider the work only insofar as it reflects calculations derived from the newly produced PASC-SEIU data; it will disregard the application of \$325 to commercial claims and any combined totals dependent on that component.
5. The corresponding May 20, 2026, testimony is limited in the same manner. Exhibit 352 may remain in the record, including under seal as separately ordered, but the excluded portions will not be considered in deciding the merits.

Matters not decided by this ruling

This ruling concerns the permissible scope of surrebuttal, not the ultimate weight or persuasiveness of the admitted opinions. Plaintiff's arguments that the IPA contract rate is blended or "polluted," that Adams misunderstood the datasets, or that the resulting methodology is substantively unreliable may be considered when the Court weighs the expert evidence and determines reasonable value. They do not enlarge the scope of the present evidentiary ruling.

The parties are ordered not to refer in further argument to the excluded commercial-rate opinions or combined aggregate figures as admissible expert conclusions.

Plaintiff's Motion in Limine No. 15 is GRANTED IN PART and DENIED IN PART.

Although styled as a motion in limine, the motion is a request for judicial notice. The Court treats it accordingly. The request is timely. The Court has reviewed the trial transcript, specifically the exchange of May 20, 2026, at page 58-59. The Court clearly authorized the parties to meet and confer concerning judicial notice and, if disputes remained, to place the matter on calendar. The Court has not entered an order closing the evidence.

The request nevertheless sweeps too broadly. Judicial notice of an official act, public record, or court filing generally establishes the document's existence, issuance, and contents, *not* the truth of reasonably disputable factual assertions, the correctness of an agency's reasoning, or the legal and factual inferences Plaintiff asks the Court to draw. (Evid. Code, § 452, subds. (b)-(d), (h); *Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063-1064; *StorMedia Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [as cited in the opposition (ROA 863, page 2)]).

Nor does Evidence Code section 1280 automatically convert every statement in a governmental document into admissible evidence. The proponent must establish the statutory requirements, including that the writing records an act, condition, or event within a public employee's duty, was made at or near the relevant time, and was prepared under circumstances indicating trustworthiness.

As to exhibits 118, 119, 121, 122, and 123, the Court takes judicial notice that DMHC issued or entered the reports, order, and agreements, and notices their stated contents as official acts. The Court does not notice as true disputed factual findings, reimbursement benchmarks, or conclusions concerning CVPG's liability. The dates and factual settings of the documents affect weight and applicability.

As to exhibit 124, the Court takes judicial notice of the DMHC website's published plan-enrollment information and how the agency displayed or categorized the identified plan. The Court does not treat the webpage as conclusive proof of the plan's legal character for every purpose or period at issue.

As to exhibit 125, the Court takes judicial notice that the declaration of Daron Toooh and attachments were filed in *NorthBay Healthcare Group, Inc. v. Blue Shield of California* (Case No. 3:17-cv-02929-WHO) and may notice qualifying DMHC materials attached to that filing as official acts. The truth of the declarant's or agency employees' statements, and their application here, is not judicially noticed.

	As to exhibit 183, the Court takes judicial notice of the federal agencies' issuance and stated contents of the March 2023 Federal IDR Guidance. The Court does not judicially notice contested factual propositions or that the guidance governs the claims in this action. Exhibit 209 has been withdrawn. As to exhibits 210 and 211, the Court declines to take judicial notice thereof. The AMA publications are materials of a private professional association. Whether they establish an industry standard, the propriety of downcoding, or any other disputed proposition is not reasonably indisputable. Those matters require an ordinary evidentiary foundation; judicial notice is not a substitute. As to exhibit 234, the Court takes judicial notice of the L.A. Care Board agenda and accompanying financial materials, published as official public-agency materials and notices their stated contents. The Court does not accept disputed financial assertions or plan classifications as conclusively true, and the document's 2025 date affects its weight and relevance to the period at issue. The judicially noticed matters may be considered only for the limited purposes stated above. The ruling does not admit each exhibit wholesale for the truth of every statement it contains, establish the applicability of any document to the claims at issue, or foreclose either party from addressing relevance, temporal fit, weight, interpretation, or any distinct layer of hearsay in the closing argument briefing. To the extent Plaintiff requests admission of Exhibits 118, 119, 121, 122, 123, 124, 125, 183, and 234 beyond the noticed propositions identified above, the request is denied without prejudice to reliance on any independent evidentiary basis already established in the trial record. The request as to Exhibits 210 and 211 is denied. Exhibit 209 is withdrawn.